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VIA DMM

Hon. Michelle L. Phillips
Secretary to the Commission
New York State Public Service Commission
Empire State Plaza
Agency Building 3
Albany, NY 12223-1350

Re: Case 18-E-0138 – Proceeding on Motion of the Commission Regarding Electric Vehicle Supply Equipment and Infrastructure

Dear Secretary Phillips:

The Vehicle Grid Integration Council hereby submits reply comments for filing on the Technical Standards Working Group Report, which addresses electric vehicle supply equipment and telematics metering accuracy for managed EV charging programs. In addition, VGIC's reply comments address stakeholder responses to the broader set of questions posed by DPS Staff.

Respectfully submitted,

A handwritten signature in blue ink, appearing to read "Steve Letendre", is written over a horizontal line.

**STATE OF NEW YORK
PUBLIC SERVICE COMMISSION**

**Proceeding on Motion of the Commission
Regarding Electric Vehicle Supply
Equipment and Infrastructure**

Case 18-E-0138

**REPLY COMMENTS OF THE VEHICLE GRID INTEGRATION COUNCIL (VGIC)
ON THE TECHNICAL STANDARDS WORKING GROUP REPORT ADDRESSING
EVSE AND TELEMATICS ACCURACY AND DPS STAFF QUESTIONS**

I. INTRODUCTION

The Vehicle-Grid Integration Council (VGIC) appreciates the opportunity to submit these reply comments in the above-captioned proceeding. VGIC thanks the Commission and Department of Public Service (DPS) Staff for their continued leadership in advancing managed charging programs and for facilitating a constructive discussion on EVSE and telematics data accuracy.

Across the stakeholder initial comments, there is broad alignment that New York’s managed charging programs are delivering meaningful grid and customer benefits today, and that preserving flexible participation pathways is essential to maintain momentum as standards mature. These reply comments reinforce that alignment and highlight key issues, summarized in the list below:

- VGIC Agrees with Parties on the Need for Flexible Program Design and “Fit for Purpose” Approaches.
- VGIC Disagrees with EDF’s Recommendation that Accuracy Standards be Adopted for the Current Portfolio of Managed Charging Programs.
- VGIC Recommends the Commission Detail the Specific Desired Reference Point for EVSE and Telematics Measurement.
- VGIC Agrees with Parties that the Commission Should Direct Additional Real-World Testing and Benchmarking for Research Purposes.

II. REPLY COMMENTS

1. VGIC Agrees with Parties on the Need for Flexible Program Design and “Fit for Purpose” Approaches.

VGIC strongly endorses the Joint Utilities’ (JU) recommendation: “Maintain flexibility in program design, allowing for continued participation through both EVSE and telematics while standards mature.”¹

Across stakeholder comments, there is significant alignment that New York should retain Option #5 (Status Quo) for participation in the managed charging program. Maintaining the current pathways for both EVSE- and telematics-based participation in the utilities’ managed charging programs is essential for scaling these programs. Furthermore, maintaining the status quo supports equitable access to managed charging incentives while building the habits and engagement needed for long-term expansion and success of the managed charging programs.

Additionally, multiple stakeholder comments noted that EVSE and telematics accuracy requirements should align with the intended purpose of a managed charging initiative. Most notably, ATE states, “The Commission would therefore be acting quite reasonably by finding that the standard for telematics and EVSE is distinct from the standard for billing, and a flexible “fit for purpose” approach for telematics and EVSE is appropriate while standards evolve.”²

VGIC endorses the principle of “fit for purpose” as applied to EVSE and telematics accuracy requirements. The utilities’ managed charging programs today do not require revenue-grade metering. They rely on verifiable changes in charging behavior that are consistent with program intent, not precise kWh measurements tied to billing. Revenue-grade metering accuracy would be necessary if/when New York adopts EV-specific residential time-of-use (TOU) rates or other EV-specific residential retail rate tariffs.

2. VGIC Disagrees with EDF’s Recommendation that Accuracy Standards be Adopted for the Current Portfolio of Managed Charging Programs.

As we noted in our initial comments, national standards must be the foundation for New York’s EVSE and telematics accuracy standards. However, VGIC respectfully disagrees with EDF’s assertion that “The Commission can and should play a policymaking role in the development of an EV telematics accuracy standard by setting a minimum accuracy requirement for EVSE and EVs receiving utility incentives and setting an actionable timeline for all new program entrants to comply with this standard.”³

¹ Joint Utilities’ Comments on the Technical Standards Working Group Report Addressing Electric Vehicle Supply Equipment and Telematics Accuracy, Case 18-E-0138, December 8, 2025, page 3.

² Comments of the Alliance for Transportation Electrification, Case-18-E-0138, December 8, 2025, page 4.

³ Environmental Defense Fund Opening Comments on Technical Standards Working Group Report Addressing Electric Vehicle Supply Equipment and Telematics Accuracy, Case 18-E-0138, December 8, 2025, page 7.

While VGIC agrees that the Commission should ultimately adopt a standard for revenue-grade submetering, this step should occur only after New York has authorized residential EV-specific rate designs. *If* these types of rates are adopted, the Commission should then adopt the nationally recognized EVSE accuracy standard in NIST Handbook 44 (i.e., 1% deviation in the lab; 2% in the field). For telematics, New York should adopt whatever national standard is developed at that time, for example, by SAE. VGIC also provides a critical recommendation in the section below regarding specific guidance New York can provide to facilitate the development of a national telematics accuracy standard.

VGIC's recommendation to refrain from enforcing new accuracy standards for EVSE and telematics until New York has EV-specific rates that require billing-grade measurement is consistent with broader stakeholder comments from the JU, ChargeScape, ev.energy, and WeaveGrid.

In short, VGIC supports a clear path toward stronger EVSE and telematics submetering accuracy standards when they are needed and, in the case of telematics, when a national standard exists, not before.

3. VGIC Recommends the Commission Detail the Specific Desired Reference Point for EVSE and Telematics Measurement.

As detailed above and in initial comments, a nationally recognized EVSE measurement approach exists and has even been adopted for customer billing purposes (i.e., where EV-specific rates would otherwise require a costly second utility meter): the accuracy standard found in NIST Handbook 44. **However, as New York considers its role in supporting national alignment for telematics, VGIC strongly encourages the Commission to issue specific guidance regarding the desired reference point for any future rate participation.** This is a critical input for any future standards development work, for example, from SAE.

VGIC believes accuracy should be evaluated relative to the intended measurement objective of a given rate or, for that matter, program, rather than assuming that utility meter equivalence is the ultimate goal of submetering. The value of submetering is precisely to isolate a specific portion of energy use, and that portion may not be measured equivalently at the utility meter. Defining the appropriate point of measurement will be a critical issue for forthcoming SAE and other national standards activities, where reference meters located at or near the vehicle charge inlet may provide a more meaningful basis for comparing EVSE and telematics accuracy than even the utility meter itself.

Analysis from EPRI and Argonne National Laboratory support this approach to developing intentional submetering policy. EPRI's September 2024 technical report details the impact of auxiliary loads, such as headlights, infotainment systems, cabin climate control, and vehicle

electronics systems.⁴ The report also cites an April 26th, 2023 presentation from Argonne National Laboratory detailing the differences in measurement across NIST Handbook 44 Section 3.40 (charger output), branch submeters (charger input), and vehicle telematics (extrapolated from battery sensor).⁵ One of the most critical – and perhaps rather obvious – takeaways from both the EPRI report and the Argonne National Laboratory presentation is that losses occur at different points in the system. For this reason, where a measurement is taken matters significantly, as it can inform which corrections are needed to compensate for losses. For example, the EPRI graphic below details the impact that current transducer placement has on accuracy due to auxiliary loads:

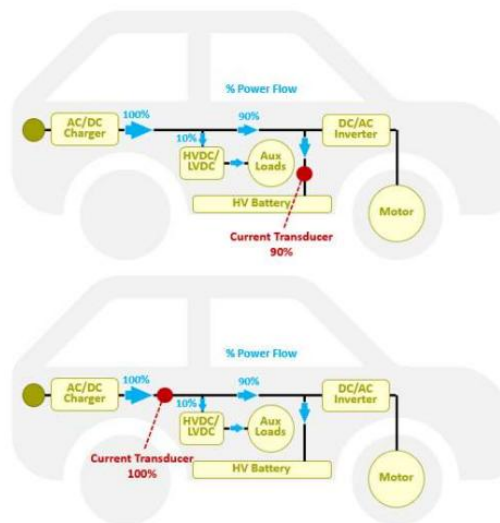


Figure 4-3
Generic illustration of how the placement of energy measurement transducers can impact accuracy.

A key gating question for telematics accuracy standards development and auto OEM product development overall – and, for that matter, the use of the NIST Handbook 44 Section 3.40 accuracy standard – may be: “*what are we looking to measure and award a discounted rate to?*”

If utilities/Commissions seek to apply EV-specific rates to kWh **used specifically for mobility**, then an “accurate” measurement for billing purposes may be one closest to the battery. In contrast, if utilities/Commissions seek to apply EV-specific rates to kWh that **promote EV adoption**, then an “accurate” measurement may account for other energy uses and, therefore, take place further upstream in the system, perhaps near the charger inlet. Meanwhile, if utilities/Commissions seek to apply EV-specific rates to kWh that **promote EVSE deployment**,

⁴ Tom Cooke, *Methodology for Testing the Accuracy of Data Collected from Managed Charging Enabling Technologies*, September 2024, available at: <https://documents.dps.ny.gov/public/Common/ViewDoc.aspx?DocRefId={70B1E691-0000-C92C-882F-08E29400DA77}>. Pages 7-8.

⁵ Theodore Bohn, *Cross Correlation of EV Charging Measurements*, April 2023, available at: <https://documents.dps.ny.gov/public/Common/ViewDoc.aspx?DocRefId=%7bA045BF87-0000-CA14-B513-198477C68BF3%7d>

then an “accurate” measurement may be at the charger, as detailed in the Argonne National Laboratory Presentation.

In this way, national standards development work relies on policy direction to determine the fundamental use cases that underpin the standard. **Specifically, the Commission could make the most significant contribution to national telematics standards development by adopting a specific justification and corresponding scope/reference point for telematics measurement.**

With this in mind, VGIC respectfully urges the Commission to adopt a policy that, if residential EV-specific rates are adopted, the rate(s) have a single pre-defined intent and, in turn, a specific implied or explicitly defined reference point for measurement. Some example intents are “support electrified mobility,” “promote EV adoption,” or “promote EVSE adoption.” Each of these intents requires a different reference point for measurement and a different scope of loss to be corrected for.

Lastly, VGIC reiterates that data access and integration models will become increasingly important as managed charging scales and more advanced use cases, including distribution system optimization and bidirectional charging, emerge. Several stakeholders recommend greater reliance on OEM-authorized telematics pathways to support improved reliability, consistency, and system integration. VGIC believes that this evolution may be appropriate over time, and should be an included topic in any future road-mapping or planning activities that New York institutes.

4. VGIC Agrees with Parties that the Commission Should Direct Additional Real-World Testing and Benchmarking for Research Purposes.

VGIC supports continued real-world testing of EVSE and telematics accuracy, as recommended by EDF, and benchmarking approaches, as recommended by ATE, to improve confidence in charging data over time. Furthermore, benchmarking can help meet transparency objectives while allowing companies to protect intellectual property and trade secrets.

As noted in VGIC’s initial comments, the EPRI study was limited in scope and was never intended, either in the Commission’s orders or in the Technical Standards Working Group process, in which VGIC was an active participant, to produce reliable metering accuracy measurements across a range of technologies and charging scenarios. It was intended solely to develop the testing protocol itself. With this in mind, expanded testing in real-world environments across a broader range of devices, charging behaviors, and operating conditions will likely be valuable for better understanding performance variability and informing standards development efforts. However, these efforts should be developed and implemented as research activities, not to justify near-term program restrictions or premature state-specific accuracy mandates.

In the context of additional real-world testing, benchmarking can support transparency goals without requiring companies to disclose proprietary, commercially sensitive data or methodologies. As ATE noted, “The data from these sessions [benchmarking testing] is then compared to the data coming from the car. If the car's data is within an acceptable margin of error, we can assume the data is accurate across all similarly situated participants.”⁶ Utilities can gain confidence in data quality without evaluating proprietary algorithms or data processing techniques. This approach supports accountability and continuous improvement without creating barriers to participation or discouraging innovation in a rapidly evolving market.

III. Conclusion

VGIC appreciates the Commission’s careful consideration of these issues and looks forward to continued collaboration with DPS Staff, the JU, and other stakeholders on these important issues.

Respectfully submitted:

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⁶ Comments of the Alliance for Transportation Electrification, Case-18-E-0138, December 8, 2025, page 5.